

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF VENTURA**

Tentative Ruling

202200570068CUMM: Lancellotti vs. Adventist Health Simi Valley

07/10/2026 in Department 42

**Demurrer and Demurrer to Defendant Simi Valley Hospital and Health Care Services
DBA Adventist Health Simi Valley's Answer to Plaintiffs Third Amended Complaint**

- Motion:**
1. Plaintiffs' Demurrer to Defendant Simi Valley Hospital and Health Care Services' Answer to Third Amended Complaint (*Opposed*)
 2. Plaintiffs' Motion to Strike Portions of Defendant Simi Valley Hospital and Health Care Services' Answer to Third Amended Complaint (*Opposed*)

Tentative Ruling: The Court is inclined to rule as follows:

A. Demurrer:

Plaintiffs' Demurrer to Defendant's Answer to the Third Amended Complaint is OVERRULED.

There are only three grounds for demurring to an answer. "A party against whom an answer has been filed may object, by demurrer as provided in Section 430.30, to the answer upon any one or more of the following grounds: (a) The answer does not state facts sufficient to constitute a defense. (b) The answer is uncertain. As used in this subdivision, "uncertain" includes ambiguous and unintelligible. (c) Where the answer pleads a contract, it cannot be ascertained from the answer whether the contract is written or oral." (Code Civ. Proc., § 430.20.)

"Generally speaking, the determination whether an answer states a defense is governed by the same principles which are applicable in determining if a complaint states a cause of action." (*South Shore Land Co. v. Petersen* (1964) 226 Cal.App.2d 725, 732.) "A demurrer reaches only to the contents of the pleading and such matters as may be considered under the doctrine of judicial notice." (*Weil v. Barthel* (1955) 45 Cal.2d 835, 837.) "The allegations of the pleading demurred to must be regarded as true[.]" (*South Shore Land Co. v. Petersen, supra*, 226 Cal.App.2d at p. 732.) "[A] demurrer does not, however, admit contentions, deductions or conclusions of fact or law alleged in the pleading. (*Ibid.*)

Here, the affirmative defenses plead ultimate facts sufficient to put Plaintiffs on notice of the basis on which relief is sought. (*Perkins v. Superior Court* (1981) 117 Cal.App.3d 1, 6.) Thus, the Court overrules the demurrer in its entirety.

B. Motion to Strike:

Plaintiffs' Motion to Strike Portions of Defendant Simi Valley Hospital and Health Care Services' Answer to Third Amended Complaint is DENIED. (Code Civ. Proc., § 436.)

The Court finds that the affirmative defenses are sufficiently pleaded to place Plaintiffs on notice of the defenses asserted. The Court further finds that the differences between the Answer to the Second Amended Complaint and the Answer to the Third Amended Complaint are not so substantial as to prejudice Plaintiffs.

Therefore, the motion to strike is denied.

Counsel for Defendant to give notice of this Court's ruling.

Background:

This is a medical malpractice action arising out of the death of Samuel Lancellotti ("Decedent") at Simi Valley Hospital on September 14, 2021. The Complaint was filed on September 13, 2022. The operative Third Amended Complaint was filed on August 1, 2024, alleging claims for (i) Elder Abuse and Neglect, (ii) Negligence, (iii) Elder Abuse and Neglect/Wrongful Death, and (iv) Negligence / Abandonment / Wrongful Death.

Defendant Adventist Health Simi Valley filed its answer on May 27, 2026, which included twenty-seven affirmative defenses. This demurrer and motion to strike were filed on June 8, 2026. The oppositions were filed on June 26, 2026 and reply to both motions was filed on June 30, 2026.

A 15-day jury trial currently is scheduled for August 17, 2026.

Grounds:

A. Demurrer

Plaintiff demurred to the following in Defendant Simi Valley Hospital and Health Care Services' Answer to Third Amended Complaint:

1. Twenty-Third Affirmative Defense (PREP Act Immunity): This defense does not state facts sufficient to constitute a defense. (Code Civ. Proc., § 430.20, subd. (a).)
2. Nineteenth Affirmative Defense (Laches): This defense does not state facts sufficient to constitute a defense. (Code Civ. Proc., § 430.20, subd. (a).)
3. Twentieth Affirmative Defense (Estoppel): This defense does not state facts sufficient to constitute a defense. (Code Civ. Proc., § 430.20, subd. (a).)
4. Twenty-First Affirmative Defense (Unclean Hands): This defense does not state facts sufficient to constitute a defense. (Code Civ. Proc., § 430.20, subd. (a).)
5. Twenty-Fifth Affirmative Defense (California Emergency Services Immunity): This defense does not state facts sufficient to constitute a defense. (Code Civ. Proc., § 430.20, subd. (a).)
6. Twenty-Sixth Affirmative Defense (Emergency Care Immunity): This defense does not state facts sufficient to constitute a defense. (Code Civ. Proc., § 430.20, subd. (a).)

7. Twenty-Seventh Affirmative Defense (Probate Code Section 259): This defense does not state facts sufficient to constitute a defense. (Code Civ. Proc., § 430.20, subd. (a).)

Defendant Simi Valley Hospital and Health Care Services dba Adventist Health Simi Valley ("Adventist") filed its Answer to the Third Amended Complaint on May 27, 2026, approximately 22 months after the TAC was served on August 1, 2024. The answer asserts 27 affirmative defenses, several of which consist of bare legal conclusions without any supporting facts.

Accordingly to Plaintiff, the most consequential of these is the Twenty-Third Affirmative Defense, which invokes immunity under the Public Readiness and Emergency Preparedness Act ("PREP Act"), 42 U.S.C. § 247d-6d. This defense did not appear in Adventist's prior Answer to the Second Amended Complaint, filed on March 7, 2024, and was asserted for the first time just 40 days before the then-scheduled July 6, 2026 trial date (now continued to August 17, 2026, following Plaintiffs' ex parte application). The defense identifies no covered countermeasure, alleges no causal nexus between any covered countermeasure and Plaintiffs' alleged injuries, and instead purports to immunize claims arising from institutional understaffing, custodial abandonment, and the failure to provide basic care. As pleaded, it is nothing more than a bare legal conclusion unsupported by factual allegations sufficient to constitute a valid affirmative defense.

Plaintiff contends that the remaining challenged affirmative defenses suffer from the same fundamental defect. Each consists of conclusory legal assertions devoid of any supporting factual allegations and therefore fails to state facts sufficient to constitute an affirmative defense.

B. Motion to Strike

Plaintiff moves to strike the following:

1. Twenty-Third Affirmative Defense (PREP Act Immunity), in its entirety, on the grounds that it constitutes irrelevant matter not applicable to the claims asserted in the Third Amended Complaint and that it was not filed in conformity with the laws of this state. (Code Civ. Proc., § 436, subds. (a), (b).) In the alternative, Plaintiffs move to strike the Twenty-Third Affirmative Defense to the extent it is asserted against the First Cause of Action (Elder Abuse and Neglect) and the Third Cause of Action (Elder Abuse and Neglect/Wrongful Death), on the ground that the PREP Act is inapplicable as a matter of law to claims arising under the Elder Abuse and Dependent Adult Civil Protection Act, Welfare and Institutions Code sections 15600 et seq.
2. The new matter added to the Ninth Affirmative Defense (Consent), specifically the language beginning "So to, Plaintiffs and/or Plaintiffs' decedent voluntarily and knowingly refused to the diagnosis, treatment and care ..." through the end of the paragraph, on the grounds that it constitutes new matter improperly inserted via a late-filed answer and not filed in conformity with the laws of this state. (Code Civ. Proc., § 436, subd. (b).)

3. The new matter added to the Tenth Affirmative Defense (Informed Consent), specifically the language beginning "So too, Plaintiffs and/or Plaintiffs' decedent refused to consent to the medical care and treatment ..." through "In giving informed consent, or in the alternative refusing the treatment offered," on the grounds that it constitutes new matter improperly inserted via a late-filed answer and not filed in conformity with the laws of this state. (Code Civ. Proc., § 436, subd. (b).)

The most significant addition is the Twenty-Third Affirmative Defense, which asserts blanket immunity under the PREP Act. This defense replaced the Arbitration Agreement defense that had occupied the Twenty-Third position in the Answer to the Second Amended Complaint. The Ninth and Tenth Affirmative Defenses (Consent and Informed Consent) were also materially expanded to include new allegations regarding the decedent's refusal of care that did not appear in the Answer to the Second Amended Complaint.

These additions are subject to a motion to strike on two independent grounds: they constitute irrelevant matter under Code of Civil Procedure section 436, subdivision (a), and they were not filed in conformity with the laws of this state under section 436, subdivision (b). Plaintiffs have complied with the statutory meet and confer requirements. (Gordon Decl. ¶¶ 12-13).

Analysis:

A. Demurrer Standard

There are only three (3) grounds for demurrer to an answer: (1) failure to state facts sufficient to constitute a defense; (2) uncertainty; and (3) failure to state whether contract alleged in the answer is written or oral. (Code Civ. Proc., § 430.20.)

“Generally speaking, the determination whether an answer states a defense is governed by the same principles which are applicable in determining if a complaint states a cause of action.” (*South Shore Land Co. v. Petersen* (1964) 226 Cal.App.2d 725, 732 (*South Shore*)). In ruling on a demurrer, the Court treats all properly pleaded facts in the complaint as admitted. (*Blank v. Kirwan* (1985) 39 Cal.3d 311, 318 (*Blank*)). The demurrer is limited to the four corners of the complaint and any additional facts which are properly the subject of judicial notice. (Code of Civ. Proc., § 430.30, subd. (a).) If there is a reasonable possibility that a pleading deficiency can be cured, it is an abuse of discretion for the court to deny leave to amend. (*Blank, supra*, 39 Cal.3d at p. 318.)

“There are, however, certain important differences between these two kinds of demurrer.” (*South Shore, supra*, 226 Cal.App.2d at p. 733.) “Unlike the usual general demurrer to a complaint the inquiry is not into the statement of a cause of action. Instead, it is whether the answer raises a defense to the plaintiff's stated cause of action.” (*Timberidge Enterprises, Inc. v. City of Santa Rosa* (1978) 86 Cal.App.3d 873, 879-880.) Additionally, “[a]n important difference is that in the case of a demurrer to the answer, as distinguished from a demurrer to the complaint, the defect in question need not appear on the face of the answer. The determination of the sufficiency of the answer requires an examination of the complaint because its adequacy is with reference to the complaint it purports to answer. [Citations.] This requirement, however, does not mean that the

allegations of the complaint, if denied, are to be taken as true, the rule being that the demurrer to the answer admits all issuable facts pleaded therein and eliminates all allegations of the complaint denied by the answer.” (*Ibid.*)

“An affirmative defense is an allegation of new matter in the answer that is not responsive to an essential allegation in the complaint. In other words, an affirmative defense is an allegation relied on by the defendant that is not put in issue by the plaintiff’s complaint.” (*The Bank of New York Mellon v. Preciado* (2013) 224 Cal.App.4th Supp. 1, 8.) “A demurrer can be used to eliminate ‘boilerplate’ affirmative defenses that often appear in answers (e.g., ‘waiver,’ ‘estoppel,’ ‘unclean hands,’ etc.). But such demurrers are very rare, probably because they are not worth the cost when the same result can be achieved by serving requests for admission or standard form interrogatories seeking the bases for the affirmative defenses.” (Weil & Brown, Cal. Practice Guide: Civ. Proc. Before Trial (The Rutter Group 2024) ¶ 7:35.1; see also ¶ 7:27 [demurrers to a defendant’s answer “are not usually worth the effort.”].)

B. Application of the Demurrer Standard

Plaintiffs contend that the Answer fails to state facts sufficient to constitute any defense as to the 23rd, 19th, 20th, 21st, 25th, 26th, and 27th (Code Civ. Proc., § 430.10, subd. (a)) affirmative defenses.

“The rules of pleading require, with limited exceptions not applicable here, only general allegations of ultimate fact.” (*McKell v. Washington Mutual, Inc.* (2006) 142 Cal.App.4th 1457, 1469.) Evidentiary facts need not be pled; rather, a pleading is adequate so long as it apprises the opposing party of the factual basis for the claim. (*Id.* at pp. 1469-1470.) The distinction between conclusions of law and ultimate facts is murky. (*Doheny Park Terrace Homeowners Assn., Inc. v. Truck Ins. Ins. Exchange* (2005) 132 Cal.App.4th 1076, 1099.) What is important is that the pleading as a whole contain sufficient facts to apprise the opposing party of the basis upon which relief is sought. (*Perkins v. Superior Court* (1981) 117 Cal.App.3d 1, 6.)

Here the Court finds the affirmative defenses plead ultimate facts sufficient to put Plaintiffs on notice of the basis on which relief is sought. (*Perkins v. Superior Court* (1981) 117 Cal.App.3d 1, 6.)

Even if Defendant could plead additional facts at this time, the failure to do so does not affect Plaintiffs’ substantial rights. “The court must, in every stage of an action, disregard any error, improper ruling, instruction, or defect, in the pleadings or proceedings which, in the opinion of said court, does not affect the substantial rights of the parties.” (Code Civ. Proc., § 475; see also *Buxbom v. Smith* (1944) 23 Cal.2d 535, 542 [“No error or defect in a pleading is to be regarded unless it affects substantial rights. (citing § 475)].) “The primary function of a pleading is to give the other party notice so that it may prepare its case (*Leet v. Union Pac. R.R. Co.* (1944) 25 Cal.2d 605, 619, 155 P.2d 42), and a defect in a pleading that otherwise properly notifies a party cannot be said to affect substantial rights. This principle is consistent with the rule that leave to amend a pleading should be liberally granted as long as there is no timeliness problem under a statute of limitations or prejudice to the opposing party.” (*Harris v. City of Santa Monica* (2013) 56 Cal.4th 203, 240.)

For these reasons, the Court overrules the demurrer to the Answer in its entirety.

C. Motion to Strike Standard

Any party, within the time allowed to respond to a pleading, may serve and file a motion to strike the whole or any part thereof. (Code Civ. Proc., § 435, subd. (b)(1); Cal. Rules Court, rule 3.1322, subd. (b).) The Court may, upon motion, or at any time in its discretion and upon terms it deems proper: (1) strike out any irrelevant, false, or improper matter inserted in any pleading; or (2) strike out all or any part of any pleading not drawn or filed in conformity with the laws of California, a court rule, or an order of the court. (Code Civ. Proc., § 436, subds. (a) & (b); *Stafford v. Shultz* (1954) 42 Cal.2d 767, 782.) When the defect which justifies striking a complaint is capable of cure, the court should allow leave to amend. (*Perlman v. Municipal Court* (1979) 99 Cal.App.3d 568, 575.)

D. Application of Motion to Strike Standard

The Court finds that this motion to strike is improper as it fails to raise grounds to strike a pleading pursuant to section 436(b). That statute provides: “The court may, upon a motion made pursuant to Section 435, or at any time in its discretion, and upon terms it deems proper: [¶] . . . [¶] (b) Strike out all or any part of any pleading not drawn or filed in conformity with the laws of this state, a court rule, or an order of the court.” (Code Civ. Proc., § 436, subd. (b).)

Here, the moving party has not demonstrated that the challenged affirmative defenses should be stricken. The Court notes that Defendant's affirmative defense under the PREP Act is properly pleaded, particularly in light of the Court's June 29, 2026 ruling. As to the remaining challenged allegations, Defendant has persuasively argued that the differences between its Answer to the Second Amended Complaint and its Answer to the Third Amended Complaint are not so significant as to prejudice Plaintiffs. Accordingly, the Court finds no basis to strike the challenged affirmative defenses and denies the motion to strike.